EUROPEAN COMMISSION
DG Competition

Case M.11956 – UMG / DOWNTOWN

Only the English text is available and authentic.

REGULATION (EC) No 139/2004
MERGER PROCEDURE

Decision on the implementation of the commitments - Purchaser approval
Date: 28/07/2026

EUROPEAN COMMISSION

Brussels, 28.7.2026
C(2026) 5556 final

PUBLIC VERSION

In the published version of this decision, some information has been omitted pursuant to Article 17(2) of Council Regulation (EC) No 139/2004 concerning non-disclosure of business secrets and other confidential information. The omissions are shown thus […]. Where possible the information omitted has been replaced by ranges of figures or a general description.

Universal Music Group N.V.
's-Gravelandseweg 80
1217 EW Hilversum
Netherlands

Subject: **Case M.11956 – UMG / DOWNTOWN**
Approval of Jamen Capital LLP and Music and Entertainment Rights Licensing Independent Network Ltd as purchaser of the Divestment Business following your letter of 12 June 2026 and the Trustee's opinion of 13 July 2026

Dear Sir or Madam,

1. FACTS AND PROCEDURE

(1) By decision of 13 February 2026 (the '**Decision**') based on Article 8(2) of the Merger Regulation ([1]), the Commission declared the operation by which Universal Music Group N.V. ('**UMG**' or the '**Notifying Party**', Netherlands) will acquire within the meaning of Article 3(1)(b) of the Merger Regulation sole control of the whole of Downtown Music Holdings LLC ('**Downtown**', United States of America, together with UMG, the '**Parties**') (the '**Transaction**') compatible with the internal market following modification by the Parties, subject to conditions and obligations (the '**Commitments**').

([1]) Council Regulation (EC) No 139/2004 of 20.1.2004 on the control of concentrations between undertakings, OJ L 24, 29.1.2004, p. 1 (the '**Merger Regulation**').

(2) The Commitments consist in the divestment to a suitable purchaser(s) (the '**Purchaser**') ([2]) of Downtown's subsidiary Curve royalty accounting business, including Curve's cloud-based royalty accounting software platform (the '**Curve Platform**'), in the form of a legal entity Curve Royalty Systems, Ltd (United Kingdom) (the '**Divestment Business**'). ([3]) The Divestment Business includes the transfer of all assets and employees that contribute to the current operation of Curve Platform. Recitals 599 and 633 of the Decision contain a detailed description of the Divestment Business.

(3) By letter of 12 June 2026 ('**Reasoned Proposal**'), the Parties proposed Jamen Capital LLP ('**Jamen**') and Music and Entertainment Rights Licensing Independent Network Ltd ('**Merlin**', together with Jamen, the '**Co-Investors**' or '**Proposed Purchaser**') for approval by the Commission as purchaser of the Divestment Business and submitted the proposed share purchase agreement signed on 6 June 2026 ('**SPA**' or '**Proposed Agreement**'). ([4]) On 13 July 2026, Monitoring Trustee Partners B.V. (the '**Trustee**') submitted an assessment of the Proposed Purchaser's suitability as a purchaser and, in particular, indicated that it fulfils the criteria of the purchaser requirements in section D of the Commitments attached to the Decision ('**Reasoned Opinion**'). ([5]) In this assessment, the Trustee also indicated that, on the basis of the Proposed Agreement, the Divestment Business would be sold in a manner consistent with the Commitments.

2. ASSESSMENT OF THE PROPOSAL

(4) The sale of the Divestment Business to the Proposed Purchaser is subject to the Commission's approval. In order to assess whether the Proposed Purchaser is a suitable purchaser of the Divestment Business, the Commission verifies that the conditions set in paragraph 19 of the Commitments are met, notably that:

(a) The Proposed Purchaser shall be independent of and unconnected to the Parties and their affiliated undertakings and should not be the undertaking acting as the seller in the concentration which gave rise to the Decision (the

([2]) Initial Commitments, Section D, contains a list of criteria (the '**Purchaser Criteria**') that a given Purchaser should satisfy to be considered a suitable Purchaser of the Divestment Business (defined below). These include that (i) the Purchaser shall be independent of and unconnected to the Parties and should not be the seller in the Transaction; (ii) the Purchaser shall have the financial resources to maintain and develop the Divestment Business as a viable and active competitive force in competition with the Parties and other competitors including that the Purchaser shall not be excessively leveraged, shall have sufficient equity and profitability, shall have a turnover significantly larger than the turnover of the Divestment Business, shall have sufficient means to finance the acquisition of the Divestment Business and the execution of its business plan, including investments; (iii) the Purchaser shall have the proven expertise, ability and incentive to maintain and develop the Divestment Business as a viable and active competitive force in competition with the Parties and other competitors; and, (iv) the acquisition of the Divestment Business by the Purchaser must neither be likely to create, in light of the information available to the Commission, *prima facie* competition concerns nor give rise to a risk that the implementation of the Commitments will be delayed.

([3]) Commitments, Schedule, paragraphs 1(a) and 1(b).

([4]) On the same date, the Proposed Purchaser and the Parties also entered into an agreed form transition services agreement ("**TSA**") and a license-back agreement ("**LBA**") and other ancillary agreements. Unless otherwise specified, references to the SPA in this Decision also includes these agreed form agreements.

([5]) Reasoned Opinion, section 8.

'**Seller**', i.e., the undertaking or natural person which controlled Downtown at the time of the Decision) nor any of its affiliated undertakings;

(b) The Proposed Purchaser shall have the financial resources to maintain and develop the Divestment Business as a viable and active competitive force in competition with the Parties and other competitors. In particular, the Proposed Purchaser shall not be excessively leveraged, shall have sufficient equity and profitability, shall have a turnover significantly larger than the turnover of the Divestment Business, shall have sufficient means to finance the acquisition of the Divestment Business and the execution of its business plan, including investments;

(c) The Proposed Purchaser shall also have the proven expertise, ability and incentive to maintain and develop the Divestment Business as a viable and active competitive force in competition with the Parties and other competitors;

(d) The acquisition of the Divestment Business by the Proposed Purchasers must neither be likely to create, in light of the information available to the Commission, *prima facie* competition concerns nor give rise to a risk that the implementation of the Commitments will be delayed. In particular, the Proposed Purchasers must reasonably be expected to obtain all necessary approvals from the relevant regulatory authorities for the acquisition of the Divestment Business.

(5) **Jamen** is an investment firm founded in March 2025. It partners with music, media and technology businesses and entrepreneurs to provide capital and strategic support. It was founded, and is majority-owned, by Matt Spetzler. Matt Spetzler is an experienced investor and executive, focusing on the music technology and software industry, in which he has successfully led over ten investments. Jamen's main investment in the music sector is Pipeline Media, a financing platform for the music and creative industries, in which it is the founder and majority owner. ([6]) Companies controlled by Jamen and Matt Spetzler have an aggregate turnover of […]. ([7])

(6) **Merlin** is a digital rights licensing agency. It offers a collective solution in respect of its members digital licensing rights. Its members include primarily smaller and medium-sized recorded music rightsholder companies. Merlin negotiates licensing agreements with digital streaming platforms ('**DSPs**') on behalf of its members. ([8]) In 2025, Merlin's total turnover was […]. ([9])

(7) The Proposed Purchaser is a joint venture which [confidential information on the Co-Investors' governance structure].

(8) The Commission will assess whether the Proposed Purchaser satisfies each of the criteria set out in paragraph 19 of the Commitments.

2.1. Independence from the Parties

(9) Pursuant to paragraph 19(a) of the Commitments, the Proposed Purchaser shall be independent of and unconnected to the Parties and their affiliated undertakings

([6]) Reasoned Proposal, paragraph 2.4.
([7]) Reasoned Proposal, paragraph 2.8.
([8]) Reasoned Proposal, paragraph 2.1.
([9]) Reasoned Proposal, paragraph 2.6.

and should not be the undertaking acting as the Seller in the concentration which gave rise to the Decision nor any of its affiliated undertakings.

(10) Based on the information provided by the Parties, the Proposed Purchaser and the Trustee, the Commission considers that this criterion is fulfilled by the Proposed Purchaser for the following reasons.

(11) *First*, according to the information provided by the Parties and the Trustee, there are no cross-shareholdings or cross-directorships between either Party and the Proposed Purchaser, or between the Seller and the Proposed Purchaser. ([10])

(12) *Second*, except for [confidential information on commercial agreements] which is concluded on an arm's length basis, ([11]) there are no commercial dealings between Jamen and the Parties. ([12]) In its Reasoned Opinion, the Trustee explains that the relationship is in line with industry-practice and does not deem such commercial relationship to impede [licensee]'s independence from UMG. ([13]) Jamen has no commercial dealings with Downtown. ([14]) Accordingly, the Commission considers that any commercial dealings between Jamen and the Parties would not impact the independence of Jamen vis-à-vis the Parties.

(13) *Third* and similarly, except for [confidential information on commercial agreements], ([15]) [confidential information on commercial agreements], ([16]) there are no commercial dealings between Merlin and the Parties. ([17]) In its Reasoned Opinion, the Trustee explains that the observed relationships are not material for either Merlin or the Parties and that these relationships are in line with industry-practice. ([18]) Accordingly, the Trustee considers that such commercial relationships would not impact Merlin's independence from the Downtown. ([19]) Merlin has no commercial dealings with UMG. ([20]) Accordingly, the Commission considers that any commercial dealings between Merlin and the Parties would not impact the independence of Merlin vis-à-vis the Parties.

(14) *Fourth,* the Parties explain that in line with Merlin's rules, membership of Merlin is not open to any company controlled by, amongst others, UMG. ([21]) Accordingly, even though some of Downtown's subsidiaries were members of Merlin, neither Downtown nor its subsidiaries are members of Merlin anymore. ([22])

(15) Accordingly, the Commission considers that both Jamen and Merlin are independent from the Parties.

([10]) Reasoned Proposal, paragraph 4.2, Reasoned Opinion, section 4.2.

([11]) The Parties submit that while UMG's repertoire accounts for [confidential information on commercial agreements], such relationship is not material for Jamen (Reasoned Proposal, paragraph 4.3).

([12]) Reasoned Proposal, paragraph 4.3.

([13]) Reasoned Opinion, section 4.3.2.

([14]) Reasoned Opinion, section 4.3.2.

([15]) [commercial agreements] entered at a time when certain Downtown entities were still members of Merlin (Reasoned Proposal, paragraph 4.4).

([16]) Indirect dealings arising from [provision of services] to Merlin's members. As Downtown's entities are no longer Merlin members, they will not enter new agreements (Reasoned Proposal, paragraph 4.4).

([17]) Reasoned Proposal, paragraph 4.4.

([18]) Reasoned Opinion, section 4.3.2.

([19]) Reasoned Opinion, section 4.3.2.

([20]) Reasoned Opinion, section 4.3.2.

([21]) Reasoned Proposal, footnote 9.

([22]) Reasoned Proposal, paragraph 4.4.

2.2. Financial resources, proven expertise and incentive to maintain and develop the Divested Business as a viable and active competitor

(16) Pursuant to paragraph 19(b) of the Commitments, the Proposed Purchaser shall have the financial resources to maintain and develop the Divestment Business as a viable and active competitive force in competition with the Parties and other competitors. In particular, the Proposed Purchaser shall not be excessively leveraged, shall have sufficient equity and profitability, shall have a turnover significantly larger than the turnover of the Divestment Business, shall have sufficient means to finance the acquisition of the Divestment Business and the execution of its business plan, including investments. Furthermore, pursuant to paragraph 19(c) of the Commitments, the Proposed Purchaser shall also have the proven expertise, ability and incentive to maintain and develop the Divestment Business as a viable and active competitive force in competition with the Parties and other competitors.

(17) Based on the information provided by the Parties, the Proposed Purchaser and the Trustee, the Commission considers that this criterion is fulfilled by the Proposed Purchaser for the reasons set out below.

2.2.1. Financial resources

(18) Based on the information provided by the Parties, the Proposed Purchaser and the Trustee, the Commission considers that both Jamen and Merlin have sufficient financial resources to maintain and develop the Divestment Business as viable and active competitive force for the reasons set out below.

(19) *First*, based on the information provided by the Parties in the Form RM, the Commission notes that the 2024 turnover of the Divestment Business is […]. ([23]) In this regard, the turnover of Jamen's majority stake portfolio companies exceeds […], [financial information]. ([24]) Furthermore, [financial information]. Furthermore, [financial information]. ([25]) Accordingly, the Commission considers that Jamen has sufficient financial resources to maintain and develop the Divestment Business as a viable and active competitive force.

(20) *Second*, when further adding Merlin's turnover to Jamen's, the overall turnover of the Co-Investors exceeds […], ([26]) which significantly exceeds the turnover of the Divestment Business of […]. ([27])

(21) *Third*, Jamen and Merlin each provided parent company guarantees to the joint venture for the purpose of the acquisition of the Divestment Business. ([28])

(22) *Fourth*, the acquisition of the Divestment Business will be fully financed by the cash investments from Jamen and Merlin. ([29])

(23) For the reasons set out above, the Commission considers that both Jamen and Merlin have sufficient financial resources to maintain and develop the Divestment Business as viable and active competitive force.

([23]) Form RM of 15 January 2026, Table 1.
([24]) Reasoned Proposal, paragraph 4.6.
([25]) Reasoned Opinion, section 6.2.1.
([26]) Reasoned Proposal, paragraph 4.6 and Reasoned Opinion, section 6.2.2.
([27]) Form RM of 15 January 2026, Table 1.
([28]) Reasoned Proposal, paragraph 4.7 and Annexes 5 and 6.
([29]) Reasoned Proposal, paragraph 4.7.

2.2.2. Proven expertise

(24) Based on the information provided by the Parties, the Proposed Purchaser and the Trustee, the Commission considers that both Jamen and Merlin have proven expertise to maintain and develop the Divestment Business as viable and active competitive force for the reasons set out below.

(25) *First*, regarding Jamen, the Commission notes that while Jamen was only set up recently, Matt Spetzler has over 20 years of experience investing in technology and Software-as-a-Service businesses, with a specific focus on the music sector in the last six years. ([30]) [confidential information on the Co Investors' investment strategy] ([31]) [confidential information on the Co-Investors' investment strategy] ([32]) [confidential information on the Co-Investors' investment strategy] ([33])

(26) *Second*, regarding Merlin, the Commission notes that Merlin has a longstanding role at the centre of the independent music community. ([34]) Merlin has operated for over 18 years representing the rights of over 30 000 companies worldwide. Merlin's management team has extensive experience working with a client base that is closely aligned with Curve's key customers. In addition, [confidential information on Merlin's strategy]. ([35])

(27) For the reasons set out above, the Commission considers that both Jamen and Merlin have proven expertise to maintain and develop the Divestment Business as viable and active competitive force.

2.2.3. Ability and incentive to maintain and develop the Divestment Business

(28) Based on the information provided by the Parties, the Proposed Purchaser and the Trustee, the Commission considers that both Jamen and Merlin will have the ability and incentive to maintain and develop the Divestment Business as viable and active competitive force for the reasons set out below.

(29) *First*, in line with the reasons outlined in sections 2.2.1 and 2.2.2 above, Jamen will have sufficient financial means and sectoral knowledge to maintain and develop the Divestment Business, including through the execution of the business plan of the Divestment Business. With Merlin's financial means, proven expertise and reputation in the independent record label community, this incrementally increases the ability and incentive that Jamen and Merlin will have to maintain and develop the Divestment Business.

(30) *Second*, the Trustee explains that, according to the Proposed Purchaser, Jamen and Merlin have followed Curve's development over the last couple of years and consider it a strong product with a clear expansion opportunity. ([36]) In addition, the Parties explained that both Jamen and Merlin are already partners in a music advance business focused on independent music companies, which is seen as highly synergistic with the activities of the Divestment Business and their mission to support the independent music community. ([37]) Further, the Proposed Purchaser has indicated to be fully committed to the acquisition of the Divestment

([30]) Reasoned Proposal, paragraph 4.11.
([31]) Reasoned Proposal, paragraph 4.11 and Reasoned Opinion, section 6.3.2.
([32]) Reasoned Proposal, paragraph 4.11 and Reasoned Opinion, section 6.3.2.
([33]) Reasoned Opinion, section 6.3.2.
([34]) See also Reasoned Opinion, section 7.3.
([35]) Reasoned Proposal, paragraphs 4.15 and 4.16 and Reasoned Opinion, section 6.3.2.
([36]) Reasoned Opinion, section 6.4.
([37]) Reasoned Proposal, paragraph 4.17 and Reasoned Opinion, section 6.4.

Business, including through the retention of key personnel. ([38]) Finally, [confidential information on the Co-Investors' strategy]. ([39])

(31) For the reasons set out above, the Commission considers that both Jamen and Merlin will have the ability and incentive to maintain and develop the Divestment Business as viable and active competitive force.

2.3. Absence of *prima facie* competition concerns

(32) According to paragraph 19(d) of the Commitments, the acquisition of the Divestment Business by the Proposed Purchaser must neither be likely to create, in light of the information available to the Commission, *prima facie* competition concerns, nor give rise to a risk that the implementation of the Commitments will be delayed. In particular, the Proposed Purchaser must reasonably be expected to obtain all necessary approvals from the relevant regulatory authorities for the acquisition of the Divestment Business.

(33) Based on the information provided by the Parties, the Proposed Purchaser and the Trustee, the Commission considers that this criterion is fulfilled by the Proposed Purchaser for the reasons set out below.

2.3.1. Absence of prima facie competition concerns

(34) Based on the information provided by the Parties, the Proposed Purchaser and the Trustee, the Commission considers that the sale of the Divestment Business to the Co-Investors will not give rise to *prima facie* competition concerns for the following reasons.

(35) *First*, since neither Jamen nor Merlin have activities in the same market as the Divestment Business, the proposed sale of the Divestment Business to the Co-Investors does not bring about any horizontal overlap. ([40])

(36) *Second*, the Parties explain that the Co-Investors do not have upstream or downstream activities linked to the Divestment Business. ([41]) Therefore, the Co-Investors would have neither the ability nor the incentive to engage in input or customer foreclosure given the absence of upstream and downstream activities linked to the Divestment business.

(37) *Third*, neither Jamen nor Merlin hold significant complementary market positions or portfolios to those of the Divestment Business. ([42]) In this regard, the Commission recalls that the market share of the Divestment Business in the global royalty accounting services market is [5-10]%. ([43]) Regarding Jamen, the Commission notes that since Jamen only started operations in 2025, it currently has limited revenues and market position. ([44]) Regarding Merlin, the Commission notes that Merlin's market position in the artist and label services is below [0-5]%. ([45]) Accordingly, the Commission considers that the market position of the Divestment Business and the Proposed Purchaser would not give rise to non-horizontally affected relationships.

([38]) Reasoned Opinion, section 6.4.
([39]) Reasoned Proposal, paragraph 4.20.
([40]) Reasoned Proposal, paragraph 4.23 and Reasoned Opinion, section 6.5.
([41]) Reasoned Proposal, paragraph 4.24(a) and Reasoned Opinion, section 6.5.
([42]) Reasoned Proposal, paragraph 4.24(c) and Reasoned Opinion, section 6.5.
([43]) Decision, Table 9.
([44]) Reasoned Opinion, section 6.5.
([45]) Form CO, Table 15.

(38) *Fourth*, neither Jamen nor Merlin have record label activities, thus dispelling any risk that they may usefully benefit from accessing commercially sensitive data. ([46])

(39) Accordingly, the Commission considers that the sale of the Divestment Business to the Co-Investors will not give rise to *prima facie* competition concerns.

(40) This *prima facie* assessment is based on the information available for the purpose of this buyer approval and does not prejudge the competition assessment of the acquisition of the Divestment Business by a competent competition authority under applicable merger control rules (if any).

2.3.2. Absence of other implementation risks

(41) Based on the information provided by the Parties, the Proposed Purchaser and the Trustee, the Commission considers the Proposed Purchaser does not give rise to implementation risks for the following reasons.

(42) *First*, the Parties submit that other than the Commission's present purchaser approval, the Co-Investors do not anticipate that any merger control or other regulatory filings or approvals will be required in connection with the acquisition of the Divestment Business by the Co-Investors. ([47])

(43) *Second*, the Parties submit that closing of the sale of the Divestment Business is solely conditional on obtaining the Commission's present purchaser approval. ([48])

(44) *Third*, the Commission notes that clause 7.1 of the SPA foresees that the sale of the Divestment Business to the Co-Investors should occur, unless otherwise agreed between the Co-Investors and the Parties, on [confidential information on timing]. ([49]) Accordingly, the Commission considers that completion of the sale of the Divestment Business will likely take place in a short period of time after the adoption of this decision.

(45) Accordingly, the Commission considers that the Proposed Purchaser does not give rise to implementation risks.

3. ASSESSMENT OF THE TRANSACTION AGREEMENTS

(46) Pursuant to paragraph 20 of the Commitments, the final binding sale and purchase agreement (as well as ancillary agreements) relating to the divestment of the Divestment Business shall be conditional on the Commission's approval. For the approval, the Commission shall verify that the Divestment Business is being sold in a manner consistent with the Decision and the Commitments.

(47) On 6 June 2026, the Parties and the Co-Investors signed the SPA.

(48) The Commission considers that the Transaction Agreements are in line with the Commitments for the following reasons.

(49) *First*, the Commission notes that [confidential information on the SPA]. ([50]) In this regard, the Trustee considers that such an approach is not unreasonable. ([51])

([46]) Reasoned Proposal, paragraph 4.24(b) and Reasoned Opinion, section 6.5.
([47]) Reasoned Proposal, paragraphs 4.21 and 4.26 and Reasoned Opinion, section 6.5.3.
([48]) Reasoned Proposal, paragraph 4.26.
([49]) Reasoned Proposal, paragraph 5.5, SPA, clause 7.1.
([50]) SPA, clause 1.8.
([51]) Reasoned Opinion, section 5.4.3.

(50) *Second*, the Trustee observes that the following aspects of the SPA are in line with the Commitments:

(a) The duration of the transitional services is in line with paragraph 2(h) of the Schedule to the Commitments;

(b) The firewall and data-safeguarding arrangements are in line with paragraph 6 of the Commitments and paragraphs 2(h) and 2(i) of the Schedule to the Commitments;

(c) The non-solicitation undertakings in respect of key personnel and the customers of the Divestment Business are in line with paragraphs 13 and 14 of the Commitments and paragraphs 2(f) and 2(g) of the Schedule to the Commitments;

(d) The closing conditions are in line with paragraph 20 of the Commitments.

(51) *Third*, the Commission notes that, in line with paragraph 2(i) of the Schedule to the Commitments, the Proposed Purchaser should grant the Committing Parties a license (without any data of the Curve Customers) which enables them to continue to use the Curve Platform for internal purposes / use cases (the '**License-Back**'). [confidential information on timing]. The SPA provides that [details of the License-Back]. ([52])

(52) The Trustee explains that [details of the License Back]. ([53]) [details of the License-Back]. ([54])

(53) Accordingly, the Commission considers that the License-Back is in line with the paragraph 2(i) of the Schedule to the Commitments.

(54) For the reasons set out above, the Commission considers that the Transaction Agreements are in line with the Commitments.

4. CONCLUSION

(55) On the basis of the above assessment, the Commission approves Jamen and Merlin as a suitable purchaser.

(56) On the basis of the Proposed Agreement, the Commission further concludes that the Divestment Business is being sold in a manner consistent with the Commitments.

(57) This decision only constitutes approval of the proposed purchaser identified herein and of the Proposed Agreement. This decision does not constitute a confirmation that the Parties have complied with the Commitments.

([52]) LBA, clause 14.1.
([53]) Reasoned Opinion, section 5.4.3.
([54]) Reasoned Opinion, section 5.4.3.

(58) This decision is based on Section D of the Commitments attached to the Commission Decision of 13 February 2026.

For the Commission

(Signed)
Anthony WHELAN
Director-General
Directorate-General for Competition